



Maritime &
Coastguard
Agency

Guidance

Annex B

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1. Relevant agreements

A relevant agreement is defined in the Merchant Shipping and Fishing Vessels (Health and Safety at Work) (Employment of Young Persons) Regulations 1998 as follows:-

“relevant agreement” in relation to a worker means a workforce agreement which applies to him, any provision of a collective agreement which forms part of a contract between him and his employer, or any other agreement in writing which is legally enforceable as between the worker and his employer.

“workforce agreement” means an agreement between an employer and workers employed by him or their representatives in respect of which the conditions set out in the Schedule to the Working Time Regulations 1998 are satisfied.

The following guidance describes workforce agreements as defined in the Schedule.

2. Work force agreements

The regulations provide a mechanism for employers to agree working time arrangements with workers' representatives, who do not have any terms or conditions set by collective agreement, and whether or not a schedule of hours of work is in place under the Merchant Shipping (Working Time) (Sea Fishing) Regulations 2004 as amended and MSN 1884(F). In the Regulations, this is called a workforce agreement. This allows employers to agree on how to use the flexibility provided by the Regulations and clarify other matters. A workforce agreement may apply to the whole of the workforce or a group of workers within it. Where it is to apply to a group of workers, the group must share a workplace, function or organisational unit within a business.

As a first step, employers should determine at what level they wish to make an agreement and then take steps to provide for representatives of the workers to be elected to negotiate it. To arrange the election of workforce representatives, the employer should:

- decide on the number of representatives – this will depend on the size of the workforce or the group to be represented; it is suggested that the number be sufficiently large to be representative of the workers concerned, though not so large as to make negotiations unwieldy;
- ensure so far as is reasonably practicable that the elections must be conducted by secret ballot; in practice it would be rare for this not to be

possible;

- ensure that the votes are counted fairly and accurately, the employer may wish to consider enlisting an independent body to verify this;
- allow each worker a vote for each representative to be elected to represent them; and
- ensure that candidates are members of the workforce on the date of the election, or in the case of a group, a member of the group to whom the agreement is to apply.

No member of the workforce should unreasonably be excluded from standing as a candidate.

To be valid, a workforce agreement must:-

- be in writing;
- be circulated in draft to all workers to whom it applies together with guidance to assist their understanding of it;
- be signed, before it comes into effect, either:
- by all the representatives of the members of the workforce or group of workers or
- if there are 20 workers or fewer employed by the company, either by all the representatives of the workforce or by the majority of the workforce
- have effect for no more than five years.

It will be possible for an elected representative to be elected for other purposes. However it would have to be made clear to those voting that the representatives were being elected for both purposes.

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